ELEV8TIDE

Agreement No. DML-ET-0003
Date: November 13, 2026

Marketing & Automation Services Agreement

ELEV8TIDE Growth System — Phase 2 (Sales Engine)

PROVIDER

Dyrique Mendoza LLC
1221 Brickell Avenue, Suite 900, Miami, FL 33131
info@dyriquemendoza.com

CLIENT

Elev8Tide Wellness LLC
Attn: Nashay
info@nashayconsulting.com

This Agreement is entered into as of the date above between Dyrique Mendoza LLC ("Provider") and Elev8Tide Wellness LLC ("Client"). The parties agree as follows:

1 Scope of Services

Provider will design, build and configure a marketing & automation system ("Phase 2 — Sales Engine") consisting of:

- **Email Sales Engine** — a behavior-branched nurture sequence plus ongoing, seasonal campaigns.
- **SMS Marketing** — behavior-triggered texts and seasonal campaigns with tracking.
- **Social + AI Automation** — comment-to-DM funnels and AI-assisted reply automation.
- **Lead HQ, Dashboard & Secure Backup** — CRM organization, source tracking, and an off-platform backup of Client's contact data.
- **Frictionless Payment System** — an order-number checkout flow paid via Client's chosen peer-to-peer methods (e.g., Cash App, Zelle, Venmo, Apple Pay).

2 Fees & Payment

The total fee for Phase 2 is **$600.00 USD**, invoiced separately (Invoice No. 0003). Payment is accepted via **PayPal**, Zelle, or Cash App. A two-payment option is available: $300 to begin and $300 on delivery. **Work begins once the first payment is received.** Fees are non-refundable once work has commenced, except as required by law.

3 Timeline

Provider will deliver the email sales sequence live within approximately one (1) week of commencement, with the remaining components configured on a rolling basis thereafter. Timelines depend on Client providing required access, content and approvals promptly (Section 4).

4 Client Responsibilities

- Provide timely access to accounts, platforms, product information and brand assets.
- Review and approve deliverables within a reasonable time.
- Supply or approve all product descriptions, pricing and offers.

5 Product Compliance & Client Warranties

> Client is the manufacturer and/or seller of its own products and is **solely responsible** for the legality, labeling, classification, marketing claims, and all federal, state and local regulatory compliance of those products (including any FDA, FTC, and consumer-protection requirements). Provider supplies marketing and automation services only, drafts all copy in an educational / research-use framework, and makes **no medical, health, efficacy or dosing claims**. Client warrants it has the lawful right to sell and market its products and will not direct Provider to use purchased or third-party contact lists in violation of CAN-SPAM, TCPA, or platform terms. Client will defend, indemnify and hold Provider harmless from any claim arising out of Client's products, claims, or contact data.

6 Intellectual Property

Upon receipt of full payment, Provider assigns to Client the deliverables created specifically for Client under this Agreement. Provider retains ownership of its pre-existing tools, templates, frameworks and know-how, and may reuse general skills and non-confidential techniques.

7 Independent Contractor

Provider is an independent contractor, not an employee, partner, agent or joint venturer of Client. Each party is responsible for its own taxes and expenses.

8 No Guarantee of Results

Provider will perform services in a professional manner but **does not guarantee any specific revenue, sales, open rates, or other results.** Marketing outcomes depend on factors outside Provider's control.

9 Limitation of Liability

Provider's total liability under this Agreement will not exceed the fees actually paid by Client. Neither party is liable for indirect, incidental, or consequential damages.

10 Confidentiality

Each party will keep the other's non-public business information confidential and use it only to perform this Agreement.

11 Term & Termination

This Agreement begins on the date of signing and continues until the Phase 2 deliverables are completed. Either party may terminate for material breach with written notice and a 7-day cure period. Fees for work performed through termination remain due.

12 Governing Law

This Agreement is governed by the laws of the State of Florida. Any dispute will be resolved in the courts located in Miami-Dade County, Florida.

By signing below, the parties agree to the terms of this Agreement.

Dyrique Mendoza — Dyrique Mendoza LLC (Provider)

Nashay — Elev8Tide Wellness LLC (Client)

This document is provided for review. Execution will be completed electronically via DocuSign. Dyrique Mendoza LLC provides marketing and automation services only and is not a law firm, medical provider, or regulatory advisor.